

**CHAPTER 36.**

An Act to exempt foreign plate more than one hundred years old from assay, stamping and marking.
[13th July 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) In any proceedings instituted after the commencement of this Act for a forfeiture or penalty for selling, exchanging or exposing to sale any gold or silver plate in contravention of section fifty-nine of the Customs Act, 1842 (which requires plate imported from foreign parts to be assayed, stamped and marked), as amended by any subsequent enactment, it shall be a good defence to prove that the plate was manufactured outside the United Kingdom more than one hundred years before the sale, exchange or exposure in question.

Exemption
of plate
more than
100 years
old from
assay &c.
5 & 6 Vict.
c. 47.

(2) Any gold or silver plate imported after the commencement of this Act which is proved to the satisfaction of the Commissioners of Customs and Excise to have been manufactured outside the United Kingdom more than one hundred years before the date of importation shall be exempt from the provisions of section ten of the Revenue Act, 1883 (which provides that

46 & 47 Vict.
c. 55.

imported plate shall be deposited in a bonded warehouse and shall not be delivered for home use until assayed, stamped and marked).

Short title
and repeal.

2.—(1) This Act may be cited as the Hall-marking of Foreign Plate Act, 1939.

5 & 6 Vict.
c. 56.

(2) Section six of the Customs (Amendment) Act, 1842, is hereby repealed.

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